

24STCV18881 24STCV18881

County: los-angeles

Division: Civil Law and Motion

Department: 407

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Case Number: 24STCV18881 Hearing Date: June 25, 2026 Dept: 407

Tentative Ruling

Judge Brock T. Hammond, Department 407

HEARING DATE: June

25, 2026 TRIAL

DATE: Disposed by settlement

CASE: Sirenia Ruiz v. General Motors LLC

CASE NO.: 24STCV18881

PLAINTIFF'S

MOTION FOR ATTORNEY'S FEES AND COSTS PURSUANT TO CIVIL CODE SECTION 1794(d)

MOVING PARTY: Plaintiff

Sirenia Ruiz

RESPONDING PARTY: Defendant General

Motors LLC

I. BACKGROUND

On July 30, 2024, Plaintiff, Sirenia Ruiz, filed this action against Defendant, General Motors LLC, for violations of the Song-Beverly Consumer Warranty Act.

On November 6, 2025, Defendant proposed a statutory offer to compromise. On November 26, 2025, Plaintiff accepted the offer. Defendant stipulated that Plaintiff would be

the prevailing party for the purposes of seeking attorney's fees and costs by motion.

On April 3, 2026, Plaintiff filed a notice of settlement of entire case.

On the same day, Plaintiff filed this motion for attorney's fees and costs and concurrently filed a Memorandum of Costs.

On June 11, 2026, Defendant filed an opposition.[1]

On June 17, 2026, Plaintiff filed a reply.

II. DISCUSSION

Plaintiff

seeks a total award of \$65,076.75, which consists of \$62,594.00 in attorney's fees, and \$3,382.75 in costs and expenses.

On November

6, 2025, the parties agreed to settle the matter. (Barry Decl., ¶ 4, Ex. 1.) Under the agreement, Plaintiff is entitled to seek reasonable attorney's fees and costs by motion. Defendant takes issue with (1) the reasonableness of the fees requested, and (2) whether all the costs are compensable.

A. Attorney Fees

The determination of reasonable amount of attorney fees is within the sound discretion of trial courts. (PLCM Group v. Drexler (2000) 22 Cal.4th 1084, 1095; Akins v. Enterprise Rent-A-Car Co. (2000) 79 Cal.App.4th 1127, 1134.) "The determination of what constitutes a reasonable fee generally 'begins with the 'lodestar,' i.e., the number of hours reasonably expended multiplied by the reasonable hourly rate....'" "[T]he lodestar is the basic fee for comparable legal services in the community; it may be adjusted by the court based on factors including, as relevant herein, (1) the novelty and difficulty of the questions involved, (2) the skill displayed in presenting them, (3) the extent to which the nature of the litigation precluded other employment by the attorneys, (4) the contingent nature of the fee award...." (Graciano v. Robinson Ford Sales, Inc. (2006) 144 Cal.App.4th 140, 154.) In setting the hourly rate for an attorney fees award, courts are entitled to consider the

rate of “fees customarily charged by that attorney and others in the community for similar work.” (Bihun v. AT&T Information Systems, Inc. (1993) 13 Cal.App.4th 976, 997 [affirming rate of \$450 per hour], overruled on other grounds by Lakin v. Watkins Associated Indus. (1993) 6 Cal.4th 644, 664.) The burden is on the party seeking attorney fees to prove reasonableness of the fees. (Center for Biological Diversity v. County of San Bernardino (2010) 188 Cal.App.4th 603, 615.)

The court has broad discretion in determining the amount of a reasonable attorney’s fee award which will not be overturned absent a “manifest abuse of discretion, a prejudicial error of law, or necessary findings not supported by substantial evidence.” (Bernardi v. County of Monterey (2008) 167 Cal.App.4th 1379, 1393-94.) The court need not explain its calculation of the amount of attorney’s fees awarded in detail; identifying the factors considered in arriving at the amount will suffice. (Ventura v. ABM Industries Inc. (2012) 212 Cal.App.4th 258, 274-75.)

1. Reasonable Hourly Rate

Ten attorneys worked on this matter for Plaintiff, including David Barry, who billed at \$695 per hour, and Elizabeth Quinn, who billed at \$675 per hour. Defendant challenges the reasonableness of Mr. Barry’s and Ms. Quinn’s rates. Defendant asks that Mr. Barry’s rate be reduced to \$675 and Ms. Quinn’s rate reduced to \$650. After consideration of the issue, the court will reduce Mr. Barry and Ms. Quinn’s rates accordingly, which would reduce the claimed fees by \$2,061.50. The court proceeds to consider the number of hours reasonably expended.

2. Number of Hours Reasonably Expended

Plaintiff’s records reflect a total of 94.4 hours billed, which includes hours spent drafting this motion, reviewing the opposition, drafting a reply, and appear at the hearing for this motion. (Barry Decl., Ex. 2.)

“[I]t is the burden of the challenging party to point to the specific items challenged [within the moving party’s verified billing invoice], with a sufficient argument and citations to evidence. General arguments that fees claimed are excessive, duplicative, or unrelated do not suffice.” (Lunada Biomedical v. Nunez (2014) 230

Cal.App.4th 459, 488.)

Defendant lodges challenges to specific entries. The court agrees with Defendant's challenges to Plaintiff's motions to compel further responses to FROGs, SROGs, and RPDs by 11.8 hours (\$7,965.00), motion to compel PMK deposition by 6.3 hours ((\$4,252.50) attorney's fee demand and lowers the requested sum by 14.7 hours (\$10,025.60). The court makes this reduction because there was little law and motion practice and nothing particularly complex or unique about this case.

In total, the court awards \$38,289.40 in attorney's fees.

B. Costs

Plaintiff seeks to recover costs in the amount of \$3,382.75.

Defendant challenges specific costs.

However, Plaintiff filed a Memorandum of Costs. A notice of motion to strike or tax costs must be served and filed 15 days after service of the cost memorandum. (Cal. R. Ct., rule 3.1700(b)(l).) Defendant did not file such a motion. Accordingly, Plaintiff is entitled to the claimed costs.

Alternatively, the court has reviewed Defendant's challenges to the Memorandum of Costs. The court declines to strike any of the challenged cost items.

III. CONCLUSION

Plaintiff is awarded \$38,289.40 in attorney's fees and \$3,382.75 in costs.

Moving party to give notice, unless waived.

Dated: June 25, 2026

Brock T. Hammond

Judge of the
Superior Court

[1] Defendant's opposition does not comply with
formatting requirements under the California Rules of Court.
Notwithstanding the procedural defects, the court exercises its discretion to
consider the arguments raised therein.